

Compliance Gap Report

PHI Pavilion

Sector: Hospitality

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Executive summary

39

OBLIGATIONS ASSESSED

23

GAPS IDENTIFIED

17

CRITICAL GAPS

Regulatory timeline

Phase	Date	Requirement
Phase I	2025-11-13	Data Protection Board of India established
Phase II	2026-11-13	Consent Manager provisions become effective
Phase III	2027-05-13	All other substantive compliance obligations become effective

Prioritized action plan

Before Nov 13, 2026 (by 2026-11-13)

- Review Consent Manager provisions and whether registration applies to your use case
- Assess and update vendor / Data Processor contracts
- Publish or update privacy notice with grievance officer contact

Before May 13, 2027 (full compliance) (by 2027-05-13)

- Define Board notification workflow per Section 8(6)..
- Define individual notification workflow..
- Appoint grievance officer per Section 8(9) and 14.
- Publish notice with all Rule 3 elements.
- Publish notice before or at point of consent.
- Create breach playbook with roles and timelines.
- Publish DPO or authorised contact per Section 8(9).
- Appoint and publish grievance officer per Section 14.

- Implement logging with one-year retention per Rule 12..
- Publish notice and signage for video surveillance..
- Publish verification method per Rule 8/9.
- Monitor processor compliance per Section 8(2)..
- Begin annual audit preparation per Section 10..
- Begin DPIA programme preparation per Section 10..
- Begin DPO appointment preparation per Section 10..
- Implement 48-hour notice before Third Schedule deletion.
- Enable Data Principals to nominate per Section 15.

Detailed obligation assessment

Applicable obligations only. Status based on questionnaire answers against DPDP Act 2023 and Rules 2025.

Security & breach

Breach notification to Data Protection Board

NOT MET

Section 8(6) · Rule 13 · Due 2027-05-13

Assessment: No Board breach notification process.

Recommended action: Define Board notification workflow per Section 8(6)..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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"e inserted; and (c) in section 87, in sub-section (2), clause (ob) shall be omitted. (3) In section 8 of the Right to Information Act, 2005, in sub-section (1), for clause (j), the following clause shall be substituted, namely:— “(j) information which relates to personal information;”. 21 of 2000. 27 of 2008. 21 of 2000. 39 of 1970. 22 of 2005. [Page 21] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINA..."

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Breach notification to affected Data Principals

NOT MET

Section 8(6) · Rule 13 · Due 2027-05-13

Assessment: No Data Principal breach notification process.

Recommended action: Define individual notification workflow..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Transparency & contact

Grievance officer appointed and contact published

NOT MET

Section 8(9) · Section 14 · Rule 9 · Due 2027-05-13

Assessment: No grievance officer appointed.

Recommended action: Appoint grievance officer per Section 8(9) and 14.

"data under sub-section (3) of section 12; (o) the period within which the Data Fiduciary shall respond to any grievances under sub-section (2) of section 13; Consistency with other laws. Bar of jurisdiction. Power to make rules. [Page 19] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 (p) the manner of nomination of any other individual by the Data Principal under sub-section (1) of section 14;..."

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"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Notice & consent

Notice contains all required elements (Rule 3)

NOT MET

Section 5 · Rule 3 · Due 2027-05-13

Assessment: No privacy notice to assess.

Recommended action: Publish notice with all Rule 3 elements.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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"of sub-rule (1) of rule 26, rules 27, 29, 30 and 40 to 43 -C of the Central Civil Services (Leave) Rules, 1972 (hereinafter referred to as "Leave Rules"). (3) Leave shall be subject to the conditions applicable to a Government servant under rules 7 to 11 and 22 to 25 of the Leave Rules, and the Central Government may, if satisfied that the operation of any of the said rules causes undue hardshi..."

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Notice to Data Principal before consent

NOT MET

Section 5 · Rule 3 · Due 2027-05-13

Assessment: No privacy notice published.

Recommended action: Publish notice before or at point of consent.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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"aw her consent to the Data Fiduciary through a Consent Manager. (8) The Consent Manager shall be accountable to the Data Principal and shall act on her behalf in such manner and subject to such obligations as may be prescribed. (9) Every Consent Manager shall be registered with the Board in such manner and subject to such technical, operational, financial and other conditions as may be prescrib..."

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Security & breach

Personal data breach response plan

NOT MET

Section 8(6) · Rule 13 · Due 2027-05-13

Assessment: No breach response plan.

Recommended action: Create breach playbook with roles and timelines.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Transparency & contact

Publication of business contact / DPO details

NOT MET

Section 8(9) · Rule 9 · Rule 14 · Due 2027-05-13

Assessment: Business contact not published.

Recommended action: Publish DPO or authorised contact per Section 8(9).

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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"to be affected thereby, before the expiry of the period of forty -five days from the date on which copies of the Official Gazette containing the said notification were made available to public; And whereas copies of the said Official Gazette were made available to the public on the 3rd January, 2025; And whereas objections and suggestions were received from the public in respect of the said dra..."

Source: dpdp rules 2025 — [Download source PDF](#)

Data Principal rights

Right of grievance redressal

NOT MET

Section 14 · Rule 9 · Due 2027-05-13

Assessment: No grievance redressal mechanism.

Recommended action: Appoint and publish grievance officer per Section 14.

"data under sub-section (3) of section 12; (o) the period within which the Data Fiduciary shall respond to any grievances under sub-section (2) of section 13; Consistency with other laws. Bar of jurisdiction. Power to make rules. [Page 19] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 (p) the manner of nomination of any other individual by the Data Principal under sub-section (1) of section 14;..."

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Data quality & lifecycle

Data retention limits and erasure when purpose ends

PARTIALLY MET

Section 8(4) · Section 12 · Rule 5 · Third Schedule · Due 2027-05-13

Assessment: Retention practices informal.

Recommended action: Document retention periods and automate deletion.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Deletion upon consent withdrawal

PARTIALLY MET

Section 6(4) · Section 8(4) · Rule 4 · Rule 5 · Due 2027-05-13

Assessment: Withdrawal exists but erasure workflow may be incomplete.

Recommended action: Automate erasure within reasonable time after withdrawal.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Security & breach

Reasonable security safeguards

PARTIALLY MET

Section 8(5) · Rule 12 · Due 2027-05-13

Assessment: Some safeguards present but gaps remain.

Recommended action: Add missing controls: encryption, access management, audit logs.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Notice & consent

Consent is free, specific, informed, and unambiguous

MET

Section 6(1) · Rule 4 · Due 2027-05-13

Assessment: Explicit affirmative consent reported.

Recommended action: Avoid pre-ticked boxes; keep consent separate from T&C.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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Consent withdrawal as easy as giving consent

MET

Section 6(4) · Rule 3 · Rule 4 · Due 2027-05-13

Assessment: Accessible withdrawal mechanism in place.

Recommended action: Ensure withdrawal triggers erasure workflow.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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Lawful processing

Lawful basis — valid consent for processing

MET

Section 4 · Section 6 · Rule 3 · Rule 4 · Due 2027-05-13

Assessment: Explicit opt-in consent mechanism in place.

Recommended action: Maintain consent records and purpose-specific notices.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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"instruments under sub-section (1) of section 23; (u) the terms and conditions of appointment and service of officers and employees of the Board under section 24; (v) the techno-legal measures to be adopted by the Board under sub-section (1) of section 28; (w) the other matters under clause (d) of sub-section (7) of section 28; (x) the form, manner and fee for filing an appeal under sub-section ..."

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Processing of digital personal data within scope

MET

Section 3 · · Due 2027-05-13

Assessment: Digital personal data processing confirmed.

Recommended action: Maintain inventory of all digital data flows.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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"rescribed. CHAPTER III RIGHTS AND DUTIES OF DATA PRINCIPAL 11. (1) The Data Principal shall have the right to obtain from the Data Fiduciary to whom she has previously given consent, including consent as referred to in clause (a) of section 7 (hereinafter referred to as the said Data Fiduciary), for processing of personal data, upon making to it a request in such manner as may be prescribed, —..."

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Purpose limitation

MET

Section 4(1) · Section 6(1) · Rule 3 · Due 2027-05-13

Assessment: Processing purposes documented for all data collected.

Recommended action: Review when adding new data types or uses.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Security & breach

Access logging and one-year log retention

NOT MET

Section 8(5) · Rule 12 · Due 2027-05-13

Assessment: No access/activity logging.

Recommended action: Implement logging with one-year retention per Rule 12..

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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Employment & special cases

CCTV / video surveillance compliance

NOT MET

Section 4 · Section 5 · Section 7 · Rule 3 · Due 2027-05-13

Assessment: No notice for CCTV processing.

Recommended action: Publish notice and signage for video surveillance..

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Data Principal rights

Identity verification for rights requests

NOT MET

Section 11 · Section 12 · Section 13 · Rule 8 · Rule 9 · Due 2027-05-13

Assessment: No identity verification for rights requests.

Recommended action: Publish verification method per Rule 8/9.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Processors & transfers

Oversight and monitoring of Data Processors

NOT MET

Section 8(2) · Rule 6 · Rule 12 · Due 2027-05-13

Assessment: No processor oversight.

Recommended action: Monitor processor compliance per Section 8(2)..

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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Notice & consent

Consent Manager provisions readiness

PARTIALLY MET

Section 6(9) · Rule 4 · Due 2026-11-13

Assessment: Consent Manager provisions not yet assessed.

Recommended action: Review Rule 4 and Section 6(9) before Nov 13, 2026.

"ain a website or app, or both, as the primary means through which a Data Principal may access the services provided by the Consent Manager. 6. The Consent Manager shall not sub -contract or assign the performance of any of its obligations under the Act and these rules. 7. The Consent Manager shall take reasonable security safeguards to prevent personal data breach. 8. The Consent Manager shall ..."

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"ion, the Board may make such inquiry as it may deem fit to satisfy itself regarding fulfilment of the conditions set out in Part A of First Schedule, and if it— (a) is satisfied, register the applicant as a Consent Manager, under intimation to the applicant, and publish on its website the particulars of such Consent Manager; or (b) is not satisfied, reject the application and communicate the re..."

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Data Principal rights

Rights requests handled within reasonable timelines

PARTIALLY MET

Section 11 · Section 12 · Section 13 · Section 14 · Rule 8 · Rule 9 · Due 2027-05-13

Assessment: Timelines informal.

Recommended action: Define and publish maximum response times.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Notice & consent

Consent records maintained

MET

Section 6 · Rule 4 · Due 2027-05-13

Assessment: Consent records maintained.

Recommended action: Retain records demonstrating consent scope and timing.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Employment & special cases

Employee personal data safeguards

MET

Section 7(c) · Section 8 · Rule 5 · Due 2027-05-13

Assessment: Employee data safeguards in place.

Recommended action: Apply notice and security to employee data.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Data quality & lifecycle

Reasonable efforts to ensure data accuracy and completeness

MET

Section 8(3) · Due 2027-05-13

Assessment: Data accuracy measures in place.

Recommended action: Periodic review of critical data fields.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Data Principal rights

Right of access — summary of personal data and processing

MET

Section 11 · Rule 8 · Rule 9 · Due 2027-05-13

Assessment: Access request process documented.

Recommended action: Publish how to submit access requests.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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"rescribed. CHAPTER III R IGHTS AND DUTIES OF DATA PRINCIPAL 11. (1) The Data Principal shall have the right to obtain from the Data Fiduciary to whom she has previously given consent, including consent as referred to in clause (a) of section 7 (hereinafter referred to as the said Data Fiduciary), for processing of personal data, upon making to it a request in such manner as may be prescribed, —..."

Source: dpdp act 2023 — [Download source PDF](#)

Right of correction and updating of personal data

MET

Section 12 · Rule 8 · Due 2027-05-13

Assessment: Correction process documented.

Recommended action: Train staff on correction workflows.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: dpdp act 2023 — [Download source PDF](#)

Right of erasure

MET

Section 13 · Rule 8 · Due 2027-05-13

Assessment: Erasure process documented.

Recommended action: Test erasure across all systems and processors.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

Source: dpdp act 2023 — [Download source PDF](#)

"data under sub-section (3) of section 12; (o) the period within which the Data Fiduciary shall respond to any grievances under sub-section (2) of section 13; Consistency with other laws. Bar of jurisdiction. Power to make rules. [Page 19] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 (p) the manner of nomination of any other individual by the Data Principal under sub-section (1) of section 14;..."

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Processors & transfers

Written contract with Data Processors

MET

Section 8(2) · Rule 6 · Due 2027-05-13

Assessment: Written processor contracts in place.

Recommended action: Review contracts annually.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: dpdp act 2023 — [Download source PDF](#)

Significant Data Fiduciary

Annual data protection audit (if SDF)

NOT MET

Section 10 · Rule 11 · Due 2027-05-13

Assessment: SDF readiness: annual audit not started.

Recommended action: Begin annual audit preparation per Section 10..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: dpdp act 2023 — [Download source PDF](#)

Data Protection Impact Assessment (if SDF)

NOT MET

Section 10 · Rule 11 · Due 2027-05-13

Assessment: SDF readiness: DPIA programme not started.

Recommended action: Begin DPIA programme preparation per Section 10..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: dpdp act 2023 — [Download source PDF](#)

Data Protection Officer appointment (if SDF)

NOT MET

Section 10 · Rule 11 · Rule 14 · Due 2027-05-13

Assessment: SDF readiness: DPO appointment not started.

Recommended action: Begin DPO appointment preparation per Section 10..

"[Page 1] 1 Summary - Digital Personal Data Protection Rules, 2025 The Ministry of Electronics and Information Technology (MeitY) notified the Digital Personal Data Protection Rules, 2025 (DPDP Rules) on November 13 th, 2025. The rules were framed under the Digital Personal Data Protection Act, 2023 (DPDPA) and are now operationalising India's first data governance legislation in a phased manner..."

Source: dsci rules index 2025 — [Download source PDF](#)

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Source: dpdp rules 2025 — [Download source PDF](#)

Data quality & lifecycle

Pre-erasure notification to Data Principal (48 hours)

NOT MET

Section 8(7) · Rule 5 · Due 2027-05-13

Assessment: No process for pre-erasure notification.

Recommended action: Implement 48-hour notice before Third Schedule deletion.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: dpdp act 2023 — [Download source PDF](#)

Data Principal rights

Right of nomination

NOT MET

Section 15 · Rule 9 · Due 2027-05-13

Assessment: Nomination right not supported.

Recommended action: Enable Data Principals to nominate per Section 15.

"data under sub-section (3) of section 12; (o) the period within which the Data Fiduciary shall respond to any grievances under sub-section (2) of section 13; Consistency with other laws. Bar of jurisdiction. Power to make rules. [Page 19] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 (p) the manner of nomination of any other individual by the Data Principal under sub-section (1) of section 14;..."

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Source: dpdp act 2023 — [Download source PDF](#)

Significant Data Fiduciary

Significant Data Fiduciary (SDF) designation assessment

PARTIALLY MET

Section 10 · Rule 11 · Due 2027-05-13

Assessment: May qualify for Significant Data Fiduciary designation.

Recommended action: Monitor government notifications; prepare enhanced obligations.

"[Page 1] 1 Summary - Digital Personal Data Protection Rules, 2025 The Ministry of Electronics and Information Technology (MeitY) notified the Digital Personal Data Protection Rules, 2025 (DPDP Rules) on November 13 th, 2025. The rules were framed under the Digital Personal Data Protection Act, 2023 (DPDPA) and are now operationalising India's first data governance legislation in a phased manner..."

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Source: dpdp act 2023 — [Download source PDF](#)

Legal source documents

Primary and secondary sources used to ground this assessment.

Digital Personal Data Protection Act, 2023 (primary)

Ministry of Electronics and IT (MeitY), Government of India

[Download PDF](#) · [Official source](#)

Digital Personal Data Protection Rules, 2025 (primary)

Ministry of Electronics and IT (MeitY), Government of India

[Download PDF](#) · [Official source](#)

DPDP Rules 2025 (English text mirror) (primary)

dpdpa.com (mirror of notified Rules)

[Download PDF](#) · [Official source](#)

PIB Press Release — DPDP Rules 2025 Notification (primary)

Press Information Bureau, Government of India

[Download PDF](#) · [Official source](#)

DSCI — DPDP Rules 2025 (Rule-to-Section Index) (secondary)

Data Security Council of India (DSCI)

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